



DEPARTMENT OF HUMAN SERVICES

Income Maintenance (Volume 3)

ADMINISTRATIVE PROCEDURES FOR THE COLORADO CHILD CARE ASSISTANCE PROGRAM

9 CCR 2503-8

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

3.840 COUNTY DISPUTE RESOLUTION PROCESS

In order to resolve disputes between county departments of social services or the service delivery agency and applicants/recipients, county departments shall adopt procedures for the resolution of disputes consistent with this section. The procedures shall be designed to establish a simple non-adversarial format for the informal resolution of disputes.

3.840.1 OPPORTUNITY FOR CONFERENCE

- .11 The county department or local service delivery agency, prior to taking action to deny, terminate, recover, initiate vendor payments or modify financial assistance or public assistance, to an applicant or recipient, shall, at a minimum, provide the individual opportunity for a county dispute resolution conference.

3.840.12

The right of an individual to a local conference is primarily to assure that the proposed action is valid, to protect the person against an erroneous action concerning benefits, and to assure reasonable promptness of county action. The individual may choose, however, to bypass the county dispute resolution process and appeal directly to the state Office of Administrative Courts, pursuant to the section on appeal and state hearing.

- .13 The applicant/recipient is entitled to:
- A. be represented by an authorized representative, such as legal counsel, relative, friend, or other spokesman, or he may represent himself;
 - B. with the exception of names of confidential informants, privileged communications between the county department and its attorney, and the nature and status of pending criminal prosecutions, examine the contents of the case file and all documents and records used by the county department or agency in making its decision at a reasonable time before the conference as well as during the conference;
 - C. present new information or documentation to support reversal or modification of the proposed adverse action;
- .14 Failure of the applicant/recipient to request a local conference within the prior notice period, or failure to appear at the time of the scheduled conference without making a timely request for postponement, shall constitute abandonment of the right to a conference, unless the applicant/recipient can show good cause for his failure to appear.

- .15 "Good Cause" includes, but is not limited to: death or incapacity of an applicant/recipient, or a member of his immediate family, or the representative; any other health or medical condition of an emergency nature; or, other circumstances beyond the control of the applicant/recipient, and which would prevent a reasonable person from making a timely request for a conference or postponement of a scheduled conference.

3.840.2 CONDUCT OF COUNTY DISPUTE RESOLUTION CONFERENCE

- .21 The local dispute resolution conference shall be held in the county department or agency where the proposed decision is pending, before a person who was not directly involved in the initial determination of the action in question. The individual who initiated the action in dispute shall not conduct the local level dispute resolution conference.
- .22 The person designated to conduct the conference shall be in a position which, based on knowledge, experience, and training, would enable him to determine if the proposed action is valid.
- .23 Two or more county departments/service delivery agencies may establish a joint dispute resolution process. If two or more counties/service delivery agencies establish a joint process, the location of the conference need not be held in the county or agency taking the action, but the conference location shall be convenient to the applicant/recipient.
- .24 The local level conference may be conducted either in person or by telephone. A telephonic conference must be agreed to by the applicant/recipient.
- .25 The county/agency caseworker or other person who initiated the action in dispute, or another person familiar with the case, shall attend the local level conference and present the factual basis for the disputed action.
- .26 The local level dispute resolution conference shall be conducted on an informal basis. Every effort is to be made to assure that the applicant/recipient understands the county department/agency's specific reasons for the proposed action, and the applicable state department's rules, or county policy. In the event the applicant/recipient does not speak English, an interpreter shall be provided by the county department/agency.
- .27 The county/agency shall have available at the conference all documents and records in the case file pertinent to the specific action in dispute.

- 3.840.28 To the extent possible, the local dispute resolution conference shall be scheduled and conducted within the prior notice period. If the county department cannot conduct the conference within this period, for whatever reason, the adverse action shall be delayed and benefits continued until such conference can be held, unless continued benefits are waived by the individual.

The county department/local service agency shall provide reasonable notice to the individual of the scheduled date, time and location for the conference, or the date, time and call-in telephone number of the scheduled telephone conference. Notice should be in writing, however, verbal notice may be given to facilitate the dispute resolution process.

- 3.840.29 The county department may consolidate disputes with any other public assistance program if the facts are similar and consolidation will facilitate resolution of all disputes.

3.840.3 NOTICE OF DISPUTE RESOLUTION CONFERENCE DECISION

At the conclusion of the conference, the person presiding shall have the agreement entered into by the parties reduced to writing. Such agreement shall be signed by the parties and/or their representatives and shall be binding upon the parties. A copy of the written decision shall immediately be provided to the applicant/recipient and/or his representative. If the conference is held by telephone, the agreement need only be signed by the person presiding. A copy of the agreement will be promptly mailed or delivered to the other party(s). In the event the dispute is not resolved, the person presiding shall prepare a written statement indicating that the dispute was not resolved.

3.840.31 The decision shall include a statement explaining the applicant or recipient's right to request a state level fair hearing before an Administrative Law Judge, the time limit for requesting a state level hearing, and if appropriate, a statement that applicable benefits will continue pending a final state decision if appealed to the state within 10 calendar days from the date of the conference decision.

3.850 APPEAL AND STATE LEVEL FAIR HEARING

3.850.1 APPEAL AND STATE LEVEL FAIR HEARING

3.850.11 [REV. EFF. 9/15/12]

These rules apply to all state-level appeals of county department actions concerning child care assistance and benefits, social services, medical assistance eligibility, child welfare services, adult protective services, and child care, unless such actions have appeals procedures explicitly specified elsewhere in department rules/regulations. An affected individual who is dissatisfied with a county department action or the result of a county dispute resolution conference or failure to act concerning benefits may appeal to the office of administrative courts for a fair hearing before an administrative law judge. This will be a full evidentiary hearing of all relevant and pertinent facts to review the decision of the county department. The time limitations for submitting a request for an appeal are:

- A. When the individual elects to avail himself of a county dispute resolution conference, but is dissatisfied with that decision, the request must be submitted in writing and mailed or delivered within ten (10) calendar days of the date the county dispute resolution conference decision was mailed or delivered to the applicant or recipient in order to receive continued benefits pending state appeal; otherwise, the ninety (90) day period specified in b, below, applies;
- B. When the individual elects not to avail himself of a county dispute resolution conference but wishes to appeal directly to the state, a written request for an appeal must be mailed or delivered not later than 90 calendar days from the date prior notice of the proposed action was mailed to the person;
- C. A request for an appeal must be mailed or delivered to the office of administrative courts.

3.850.12 Requests for state hearings may result from such reasons as:

- A. The opportunity to make application or reapplication has been denied;
- B. An application for assistance or services has not been acted upon within the maximum time period for the category of assistance;

- C. The application for assistance has been denied, the benefit has been modified or discontinued, vendor payments have been initiated, requested reconsideration or a benefit amount deemed incorrect has been refused or delayed, payment has been delayed through the holding of payments, the county is demanding repayment for any part of an award to a recipient or former recipient which the recipient does not believe is justified, or the applicant or recipient disagrees with the type or level of benefits or services provided.

3.850.13 the basic objectives and purposes of the appeal and state hearing process are:

- A. To safeguard the interests of the individual applicant or recipient;
- B. To provide a practical means by which the applicant or recipient is afforded a protection against incorrect action on the part of the representatives of the state or county departments;
- C. To bring to the attention of the state department and county department information which may indicate need for clarification or revision of state and county policies and procedures;
- D. To assure equitable treatment through the administrative process without resort to legal action in the courts.

3.850.14 Any clear expression in writing by the individual, or someone legally authorized to act for him, that he wants an opportunity to have a specific action of a county department reviewed by the state department is considered an appeal and a request for a hearing. The county department shall, when asked, aid the person in preparation of a request for a hearing. If the request for a hearing is made orally, the county department shall immediately prepare a written request for the individual's signature or have the recipient prepare such request, specifying the action on which the request is based and the reason for appealing that action.

3.850.15 The applicant/recipient is entitled to:

- A. Be represented by an authorized representative, such as legal counsel, relative, friend, or other spokesman, or he may represent himself;
- B. With the exception of the names of confidential informants, privileged communications between the county departments and its attorney, and the nature and status of pending criminal prosecutions, examine the complete case file and any other documents, records, or pertinent material to be used by the county at the hearing, at a reasonable time before the date of hearing and during the hearing.

3.850.16 The applicant/recipient, staff of the county department, and staff of the state department are entitled to:

- A. Present witnesses;
- B. Establish all pertinent facts and circumstances;
- C. Advance any arguments without undue interference;
- D. Question or refute any testimony or evidence, including opportunity to confront and cross-examine adverse witnesses.

3.850.2 AUTHORITY AND DUTIES OF STATE ADMINISTRATIVE LAW JUDGE

3.850.21 [REV. EFF. 9/15/12]

One or more persons from the state department of general support services/personnel, office of administrative courts, are appointed to serve as administrative law judges for the state department of human services.

.22 The state administrative law judge shall, prior to the hearing, review the reasons for the decision under appeal and be prepared to interpret applicable departmental rules and/or official written county policies pertaining to the issue under appeal in preparation for conduct of the hearing.

.23 For purposes of these rules, the terms "official written county policies governing the program area" or "county policies" are policies or amendments which have been formally adopted by the county board of commissioners in that county, subject to the requirements of state rules, state law, federal regulations, and federal law. Such policies include county plan submittals required by the state department.

The county shall forward copies of its policies and any subsequent amendments, including effective dates, to the state department and to the office of appeals. Individuals appealing a county action shall be provided reasonable opportunity to examine the county's policies.

.24 When the applicant/recipient and/or the department are not represented by legal counsel, the administrative law judge shall assist in bringing forth all relevant evidence and issues relating to the appeal. This will include granting the right of either party to submit pertinent questions to the other pursuant to appropriate rules of civil procedure.

3.850.3 STATE RESPONSIBILITIES

3.850.31 [REV. EFF. 9/15/12]

Upon receipt by the office of administrative courts of an appeal request, it is assigned a number. A hearing date is set at least ten (10) days in advance, and a letter by first class or certified mail is sent to the appellant and the county department notifying them of the date, time, and place of the hearing. The appellant is told that if these arrangements are not satisfactory to notify the office of administrative courts and, if good cause therefore exists, consideration will be given to changing them. An information sheet shall be enclosed to explain the hearing procedures to the appellant. The appellant is informed of his right to representation, that he or his representative has the right to examine all materials to be used at the hearing, before and during the hearing. The appellant also is informed that failure to appear at the hearing as scheduled, without having secured a proper extension in advance, or without having shown good cause for failure to appear, shall constitute abandonment of the appeal and cause a dismissal thereof. Information which the appellant or his representative does not have an opportunity to see shall not be made a part of the hearing record or used in a decision on an appeal. No material made available for review by the administrative law judge may be withheld from review by the appellant or his representative.

.32 In assistance payments and medical assistance eligibility appeals, the administrative law judge has 20 days from the hearing date to arrive at an initial decision. The initial decision shall not be implemented pending review by the office of appeals and entry of a final agency decision. All agency decisions on these appeals shall be made within ninety (90) days from the date of the request for hearing is received.

.33 In all other appeals, the administrative law judge shall arrive at an initial decision (which is not to be implemented) within a reasonable timeframe. All final agency decisions on those matters shall also be made within a reasonable period of time.

- .34 Once the initial decision has been made, it shall immediately be delivered to the state department of human services, office of appeals, for determination of the final agency decision.

3.850.4 COUNTY RESPONSIBILITIES

3.850.41 [REV. EFF. 9/15/12]

When the applicant/recipient has had a local dispute resolution conference and wishes to appeal the county department's decision, the following procedures are to be followed:

- A. As part of the local conference the applicant or recipient is informed that if he wishes to appeal to the office of administrative courts for a hearing, the county department will assist him in organizing the facts supporting his claim, if he so desires, and that he may have the opportunity to examine materials as described in the section concerning opportunity for state level fair hearing;
- B. The county will forward a copy of the decision and a copy of the written notification given to the applicant/recipient of the proposed adverse action to the office of administrative courts.

3.850.42 [REV. EFF. 9/15/12]

When the applicant/recipient makes his/her appeal directly to the office of administrative courts, a copy of the notice to the appellant setting a date for the hearing is forwarded to the county department. Upon receipt by the county department, the county department prepares and mails a letter to the appellant with a copy to the office of administrative courts, no later than five (5) days prior to the hearing, giving the following information:

- A. The reasons for the decision of the county department and specific explanation of each factor involved, such as the amount of excess property or income, assignment or transfer of property, residence factors, service needs;
- B. The specific state rules and/or the official written county policy(s) on which the decision is based and numeric reference to each such rule, including the appropriate code of colorado regulations (ccr) cites;
- C. Notice that the county department will assist him/her in organizing the facts supporting his/her claim, if s/he so desires, and that s/he may have the opportunity to examine regulations and other materials to be used at the hearing concerning the basis of the county decision.

3.850.43 [REV. EFF. 9/15/12]

If the appellant indicates that s/he desires to withdraw his/her appeal, a statement to that effect shall be obtained from him/her in writing and forwarded to the office of administrative courts. The county department shall also advise the office of administrative courts by telephone, as soon as it is ascertained that the appeal has been withdrawn and that the appellant will not attend the hearing.

3.850.44 [REV. EFF. 7/1/89]

If an individual who files an appeal is to be represented by legal counsel, or other representative, at the pending hearing, the county department will not discuss with the individual the merits of the appeal or the question of whether or not to proceed with it unless in the presence of, or with the permission of, such counsel or such other designated representative.

3.850.45 [REV. EFF. 7/1/89]

If the county department learns that the applicant or recipient will be represented by legal counsel, the county department shall make every effort to insure that it too is represented by an attorney at the hearing. The county department may be represented by an attorney in any other appeal that it considers such representation desirable.

3.850.46 [REV. EFF. 7/1/89]

If the appellant has a language difficulty, the county department shall arrange to have present at the hearing a qualified interpreter who will be sworn to translate correctly.

3.850.47 [REV. EFF. 9/15/12]

The fact that an appellant and the county department have been notified that a hearing will be held does not prevent the county department from reviewing the case and considering any new factors which might change the status of the case, taking such action as may be indicated to reverse its decision or otherwise settle the issue. Any change which results in a voiding of the cause of appeal shall be immediately reported to the office of administrative courts by telephone.

3.850.48 [REV. EFF. 7/1/89]

Upon receipt of notice of a state hearing on an appeal, the county department shall arrange for a suitable hearing room appropriate to accommodate the number of persons, including witnesses, who are expected to be in attendance, taking into consideration such factors as privacy; absence of distracting noise; need for table, chairs, electrical outlet, adequate lighting and ventilation, and conference telephone facilities.

3.850.5 CONDUCT OF STATE HEARINGS

3.850.50 Conference telephonic hearings may be conducted unless otherwise requested by any of the parties, as an alternative to face-to-face hearings. All applicable provisions of the face-to-face hearings procedures will apply, such as the right to be represented by counsel, the right to examine and cross-examine witnesses, the right to examine the contents of the case file, and the right to have the hearing conducted at a reasonable time and date.

3.850.51 The administrative law judge shall conduct the hearings in accordance with the colorado administrative procedure act (section 24-4-105, c.r.s.).

3.850.52 The county department shall have the burden of proof, by a preponderance of the evidence, to establish the basis of the ruling being appealed. Every party to the proceeding shall have the right to present his case or defense by oral and documentary evidence, to submit rebuttal evidence, and to conduct such cross-examination as may be required for a full and true disclosure of the facts. Subject to these rights and requirements, where a hearing will be expedited and the interests of the parties will not be subsequently prejudiced thereby, the administrative law judge may receive all or part of the evidence in written form or by oral stipulations.

3.850.6 PROCEDURE OF HEARING

3.850.61 PROCEDURE BEFORE ALJ [REV. EFF. 9/15/12]

The following provisions govern the procedure at state hearings before the administrative law judge:

A. The hearing is private; however, any person or persons whom the appellant wishes to appear for him may be present, and, if requested by the appellant and in the record, such hearing may be public;

B. The purpose of the hearing is to determine the pertinent facts in order to arrive at a fair and equitable decision in accordance with the rules of the state department. In arriving at a decision, only the evidence and testimony introduced at the hearing is considered, except that the administrative law judge may permit the introduction of medical or other evidence after the hearing, provided the opposing party is also furnished a copy and is afforded the opportunity to controvert or otherwise respond to such evidence, in circumstances when it is shown, at the hearing, that such evidence could not, for good cause, be obtained in time for the hearing. Delays in rendering the initial decision will be charged to the party requesting the delay;

C. Although the hearing is conducted on an informal basis and an effort is made to place all the parties at ease, it is essential that the evidence be presented in an orderly manner so as to result in an adequate record;

D. A complete and exact record of the proceedings shall be made by electronic or other means. When required, the office of administrative courts shall cause the proceedings to be transcribed.

3.850.62 When the administrative law judge dismisses an appeal for reasons other than failure to appear, the decision of the administrative law judge shall be an initial decision, which shall not be implemented pending review by the office of appeals and entry of an agency decision.

3.850.63 The administrative law judge shall not enter a default against any party for failure to file a written answer in response to the notice of hearing, but shall base the initial decision upon the evidence introduced at the hearing. An appellant may be granted a postponement of the hearing, however, if the county department has failed to provide the statement required by section 3.850.42 and the appellant has therefore been unable to prepare for the hearing.

3.850.64 [REV. EFF. 9/15/12]

When an appellant fails to appear at a duly scheduled hearing, having been given proper notice, without having given timely advance notice to the administrative law judge of acceptable good cause for inability to appear at the hearing at the time, date and place specified in the notice of hearing, then the appeal shall be considered abandoned and an order of dismissal shall be entered by the administrative law judge and served upon the parties by the office of administrative courts. The dismissal order shall not be implemented pending review by the office of appeals and entry of an agency decision.

The appellant, however, shall be afforded a ten-day period from the date the order of dismissal was mailed, during which the appellant may explain in a letter to the administrative law judge the reason for his/her failure to appear. If the administrative law judge then finds that there was acceptable good cause for the appellant not appearing, the administrative law judge shall vacate the order dismissing the appeal and reschedule another hearing date.

If the appellant does not submit a letter seeking to show good cause within the 10-day period, the order of dismissal shall be filed with the office of appeals of the state department. The office of appeals shall confirm the dismissal of the appeal by an agency decision, which shall be served upon the parties. The county department shall immediately carry out the necessary actions to provide assistance or services in the correct amount, to terminate assistance or services, to recover assistance incorrectly paid, and/or other appropriate actions in accordance with the rules.

If the appellant submits a letter seeking to show good cause and the administrative law judge finds that the stated facts do not constitute good cause, the administrative law judge shall enter an initial decision confirming the dismissal. The appellant may file exceptions to the initial decision pursuant to section 3.850.72, a.

3.850.65 INTERIM RELIEF (NOT APPLICABLE TO CHILD CARE ASSISTANCE PROGRAMS)

3.850.651

Upon written sworn application accompanied by appropriate financial statement, the appellant may, at any time prior to the hearing of an action concerning termination or reduction of assistance or services, apply for an agency order (the administrative law judge is designated as representing the agency in such matters) granting interim relief to prevent irreparable injury. The order, if made, shall continue in force until the final agency decision. The order shall contain a specific finding based upon evidence submitted to the administrative law judge that specified irreparable damage will result if the order is not granted. A copy of such decision shall be sent to the county department. In the event the final agency decision is against the appellant, recovery shall be considered for all funds expended under the order of interim relief subject to recovery rules.

3.850.652

The county department shall provide to the appellant the assistance or service specified in an agency order granting interim relief as soon as possible but not later than ten calendar days from the date of receipt of such order.

3.850.653

The appellant need not request interim relief if he/she is eligible for continued benefits pursuant to section 3.800.34 of this staff manual.

3.850.7 DECISION AND NOTIFICATION

3.850.71 INITIAL DECISION

Following the conclusion of the hearing, the administrative law judge shall promptly prepare and issue an initial decision and file it with the office of appeals of the state department of human services.

The initial decision shall make an initial determination whether the county or state department or its agent acted in accordance with, and/or properly interpreted, the rules of the state department. The administrative law judge may determine whether statutes were properly interpreted and applied only when no implementing state rules or county department policy exist. The administrative law judge has no jurisdiction or authority to determine issues of constitutionality or legality of departmental rules.

The initial decision shall advise the applicant/recipient that failure to file exceptions to provisions of the initial decision will waive the right to seek judicial review of a final agency decision which affirms those provisions.

The office of appeals shall promptly serve the initial decision upon each party by first class mail, and shall transmit a copy of the decision to the division of the state department which administers the program(s) pertinent to the appeal.

The initial decision shall not be implemented pending review by the office of appeals and entry of an agency decision.

3.850.72 REVIEW BY THE OFFICE OF APPEALS [REV. EFF. 9/15/12]

The office of appeals of the state department, as the designee of the executive director, shall review the initial decision of the administrative law judge and shall enter a final agency decision affirming, modifying, reversing, or remanding the initial decision.

- A. Any party seeking an agency decision which reverses, modifies, or remands the initial decision of the administrative law judge shall file exceptions to the decision with the state department, office of appeals, within fifteen (15) days (plus three days for mailing) from the date the initial decision is mailed to the parties. Exceptions must state specific grounds for reversal, modification or remand of the initial decision.

If the party asserts that the administrative law judge's findings of fact are not supported by the weight of the evidence, the party shall simultaneously with or prior to the filing of exceptions request the office of administrative courts to cause a transcript of all or a portion of the hearing to be prepared and filed with the office of appeals. The exceptions shall state that a transcript has been requested, if applicable. Within 5 days of the request for transcript, the party requesting it shall advance the cost therefore to the transcriber designated by the office of administrative courts unless prior payment is waived by the transcriber.

A party who is unable because of indigency to pay the cost of a transcript may file a written request, which need not be sworn, with the office of appeals for permission to submit a copy of the hearing recording instead of the transcript. If submission of a recording is permitted, the party filing exceptions must promptly request a copy of the recording from the office of administrative courts and deliver it to the office of appeals. Payment in advance shall be required for the preparation of a copy of the recording.

If the exceptions do not challenge the findings of fact, but instead assert only that the administrative law judge improperly interpreted or applied state rules or statutes, the party filing exceptions is not required to provide a transcript or recording to the office of appeals.

The office of appeals shall serve a copy of the exceptions on each party by first class mail. Each party shall be limited to ten (10) calendar days from the date exceptions are mailed to the parties in which to file a written response to such exceptions. The office of appeals shall not permit oral argument.

The office of appeals shall not consider evidence which was not part of the record before the administrative law judge. However, the case may be remanded to the administrative law judge for rehearing if a party establishes in its exceptions that material evidence has been discovered which the party could not with reasonable diligence have produced at the hearing.

While review of the initial decision is pending before the office of appeals, the record on review, including any transcript or recording of testimony filed with the office of appeals, shall be available for examination by any party at the office of appeals during regular business hours.

- B. The division(s) of the state department responsible for administering the program(s) relevant to the appeal may file exceptions to the initial decision, or respond to exceptions filed by a party, even though the division has not previously appeared as a party to the appeal. The division's exceptions or responses must be filed in compliance with the requirements of 3.850.72, a, above. Exceptions filed by a division that did not appear as a party at the hearing shall be treated as requesting review of the initial decision upon the state department's own motion.
- C. In the absence of exceptions filed by any party or by a division of the state department of human services, the office of appeals shall review the initial decision, and may review the hearing file of the administrative law judge and/or the recorded testimony of witnesses, before entering a final agency decision. Review by the office of appeals shall determine whether the decision properly interprets and applies the rules of the state department, or relevant statutes, and whether the findings of fact and conclusions of law support the decision. If a party or division of the state department objects to the agency decision entered upon review by the office of appeals, the party or division may seek reconsideration pursuant to section 3.850.73, below.
- D. The office of appeals shall mail copies of the final agency decision to all parties by first class mail.
- E. For purposes of requesting judicial review, the effective date of the final agency decision shall be the third day after the date the decision is mailed to the parties, even if the third day falls on saturday, sunday, or a legal holiday. The parties shall be advised of this in the agency decision.
- F. The state or county department shall initiate action to comply with the final agency decision within three working days after the effective date. The department shall comply with the decision even if reconsideration is requested, unless the effective date of the agency decision is postponed by order of the office of appeals or a reviewing court.

3.850.73 RECONSIDERATION OF AGENCY DECISION

A motion for reconsideration of a final agency decision may be granted by the office of appeals for the following reasons:

- A. Upon a showing of good cause for failure to file exceptions to the initial decision within the 15 day period allowed by section 3.850.72, a; or
- B. Upon a showing that the agency decision is based upon a clear or plain error of fact or law. An error of law means failure by the office of appeals to follow a rule, statute, or court decision which controls the outcome of the appeal.

No motion for reconsideration shall be granted unless it is filed in writing with the office of appeals within 15 days of the date that the agency decision is mailed to the parties. The motion must state specific grounds for reconsideration of the agency decision.

The office of appeals shall mail a copy of the motion for reconsideration to each party of record and to the appropriate division of the state department.

3.850.74

When an appeal results in a decision that an action of the county or state department was not in accordance with rules of the department, or when the county or state department so determines after a request for a hearing is made, the adjustment or corrective payment is made retroactively to the date of the incorrect action.

3.850.75 [REV. EFF. 9/15/12]

The applicant/recipient is to be fully informed by the final agency decision of his further right to apply for judicial review of the agency decision by the filing of an action for review in the appropriate state district court. Any such action must be filed in accordance with the rules of civil procedure for courts of record in colorado within thirty five (35) days after the final agency decision becomes effective.

3.850.76

The state department will establish and maintain a method for informing, in summary and depersonalized form, all county departments and other interested persons concerning the issues raised and decisions made on appeals.

3.850.77

The executive director or designee shall have the power to enter declaratory orders. The executive director or designee may, in his/her discretion, entertain and promptly dispose of petitions for declaratory orders to terminate controversies and/or remove uncertainties as to the applicability to the petitioners of any statutory provisions or of any rule. The order of the executive director or designee disposing of the petition shall constitute final agency action subject to judicial review.

3.850.8 GROUP HEARINGS AND EXCEPTIONS

- .81 When a number of individual requests for hearing are received and if the sole issue involved is one of state or federal law or changes in state or federal law, a single group hearing may be conducted. In all group hearings, the policies governing hearings must be followed. Each individual shall be permitted to present his own case or be represented by his authorized representative and is entitled to receive a copy of the written decision.
- .82 A hearing shall not be granted when either state or federal law requires an automatic benefit adjustment for classes of recipients unless the sole reason for an individual appeal is incorrect benefit computation. Furthermore, a hearing shall not be granted when either state or federal law requires or results in a reduction or deletion of a benefit.
- .83 Unless properly designated as a representative of an individual, a provider of assistance, or any other provider of goods and services to applicants or recipients, shall not be granted a hearing concerning an alleged adverse action to an applicant or recipients.

3.850.9 PROVIDER APPEALS

In the case of an appeal by a licensed or certified provider or vendor of services of an adverse action by a county department or the state department related to provider status, rates, or purchased services, the decision of the Administrative Law Judge is a final agency decision and is not subject to state department review or modification. The decision of the Administrative Law Judge is subject to judicial review, pursuant to 24-4-106 and 26-1-106, C.R.S.

Editor's Notes

Primary sections of 9 CCR 2503-1 have been recodified effective 09/15/2012. See list below. Versions and rule history prior to 09/15/2012 can be found in 9 CCR 2503-1. Prior versions can be accessed from the All Versions list on the current rule page.

Rule section 3.000-3.100, et seq. has been recodified as 9 CCR 2503-1, (Reserved for Future Use).

Rule section 3.200, et seq. has been recodified as 9 CCR 2503-2, (Reserved for Future Use).

Rule section 3.300, et seq. has been recodified as 9 CCR 2503-3, COLORADO REFUGEE SERVICES PROGRAM (CRSP).

Rule section 3.400, et seq. has been recodified as 9 CCR 2503-4, (Reserved for Future Use).

Rule section 3.500, et seq. has been recodified as 9 CCR 2503-5, ADULT FINANCIAL PROGRAMS.

Rule section 3.600, et seq. has been recodified as 9 CCR 2503-6, COLORADO WORKS PROGRAM.

Rule section 3.700, et seq. has been recodified as 9 CCR 2503-7, LOW-INCOME ENERGY ASSISTANCE PROGRAMS (LEAP).

Rule section 3.800, et seq. has been recodified as 9 CCR 2503-8, ADMINISTRATIVE PROCEDURES FOR THE COLORADO CHILD CARE ASSISTANCE PROGRAM.

Rule section 3.900, et seq. has been recodified as 9 CCR 2503-9, COLORADO CHILD CARE ASSISTANCE PROGRAM.

History

Rules 3.800.51-52, 3.810.13, 3.830.22-24, 3.840.12, 3.850.11, 3.850.21, 3.850.31, 3.850.41-43, 3.850.47, 3.850.61, 3.850.64, 3.850.72, 3.850.75, eff. 09/15/2012. Rules 3.800.53-54, 3.800.6, 3.810.6-3.810.62, 3.811-3.811.57 repealed eff. 09/15/2012.

Rule 3.800.7 eff. 01/01/2016.

Rules 3.840.11, 3.840.14-15, 3.840.22, 3.840.27-29, 3.840.3, 3.840.31, 3.850.11, 3.850.2-3.850.4, 3.850.50, 3.850.6-3.850.9, eff. 03/01/2020. Rules 3.800-3.830.31, 3.850.23, 3.850.65, 3.860-3.880 repealed eff. 03/01/2020.

Rules 3.850.1-3.850.77 emer. rules eff. 04/03/2020.

Rules 3.850.1-3.850.77 eff. 07/01/2020.